

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUOR043694: BRITTANY PAGANO vs MICHAEL ROSE

07/07/2026 in Department 21

Motion for Instructions by Referee Matthew Taylor

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Matthew L. Taylor, Partition Referee’s Motion for Instructions and for Approval of Initial Referee’s Report and Recommendation. (*Opposed*)

Tentative Ruling:

The Motion by Partition Referee Matthew L. Taylor for Instructions and for Approval of Initial Referee’s Report and Recommendation is GRANTED in part, as modified below.

The Court finds that the Referee substantially complied with the Stipulated Interlocutory Judgment. The Referee established a claims process, reviewed the parties’ submissions, prepared findings and recommendations regarding compensatory adjustments, and properly submitted the Report to the Court after the parties did not stipulate to its adoption.

Plaintiff does not oppose listing and sale of the property. The Referee is therefore authorized to proceed with listing the property for sale under the Interlocutory Judgment.

First, the Court modifies the Report to allow Plaintiff the denied \$5,530.00 in flat-fee attorney’s fees. Plaintiff’s opposition supplies the hourly rate and approximate time allocation for those entries. The work—drafting the complaint, lis pendens, motion for interlocutory judgment, and case management statement—was reasonably incurred for the common benefit in furtherance of partition.

Second, the Court modifies the Referee’s award of \$12,244.00 in Defendant’s “New Repair Payments” only to correct the two concrete discrepancies identified by Plaintiff. Plaintiff argues generally that many of the supporting checks are blurry or illegible. The Court has reviewed the check images submitted in the appendices. Although some checks are somewhat blurry, the

Court finds that they are sufficiently legible to determine the payment amounts. The Court therefore does not find the check images so unclear or unreliable as to justify denying the entire repair-payment category. The Court therefore overrules Plaintiff's general objection to the repair-payment category based on legibility.

However, Plaintiff identifies two concrete discrepancies: an October 22, 2018 entry listed as \$125.00, where the check appears to be \$120.00, and a March 19, 2022 entry listed as \$300.00, where the check appears to be \$200.00. Those discrepancies total \$105.00. The Court sustains Plaintiff's objection only to that extent and reduces Defendant's repair-payment credit by \$105.00. The balance of the \$12,244.00 repair-payment award is approved.

The monetary result remains:

Plaintiff receives an additional \$5,530.00 in attorney's fees and \$9,948.75 in additional fees/costs, for a total increase of \$15,478.75.

Defendant's repair-payment credit is reduced by \$105.00.

The total gross adjustment from the Referee's recommendation is \$15,583.75 in Plaintiff's favor.

Plaintiff's counsel to give notice.